

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
GALVESTON DIVISION**

MATTHEW OLIVER REARDON,

§

Plaintiff,

§

§ **CIVIL ACTION NO.**

3:25-CV-00203

v.

§

§

WILLIAM OSTEEN, et al.,

§

Defendants.

§

**PLAINTIFF'S OBJECTIONS TO THE MAGISTRATE JUDGE'S
MEMORANDUM OPINION, ORDER, AND RECOMMENDATION (DKT. 90)**

**TO THE HONORABLE JEFFREY V. BROWN, UNITED STATES DISTRICT
JUDGE:**

Plaintiff Matthew Oliver Reardon, appearing pro se, respectfully submits these Objections to the Memorandum Opinion, Order, and Recommendation (“R&R”) entered by Magistrate Judge Andrew M. Edison on July 14, 2026 (Dkt. 90). Pursuant to Federal Rule of Civil Procedure 72(b)(2) and 28 U.S.C. § 636(b)(1)(C), Plaintiff objects to the recommendations described in Part I below, subject to de novo review. Pursuant to Federal Rule of Civil Procedure 72(a), Plaintiff separately objects to the non-dispositive orders described in Part II below, subject to review for clear error or contrary-to-law. These objections are timely filed within fourteen (14) days of service of the R&R.

I. STANDARD OF REVIEW

This Court reviews de novo any part of the R&R that has been properly objected to regarding dispositive matters. 28 U.S.C. § 636(b)(1)(C); Fed. R. Civ. P. 72(b)(3). This standard applies to Objections One through Six and Objection Nine below, each of which concerns a recommendation on a dispositive motion (motions to dismiss, sua sponte dismissal, and the motion for a temporary restraining order).

By contrast, the motion to strike and for sanctions (Dkt. 61) and the motion for leave to file a supplemental complaint (Dkt. 85) were resolved by the Magistrate Judge's Order, not by recommendation, because they are non-dispositive matters. Objections to non-dispositive orders are reviewed only for clear error or a determination contrary to law. Fed. R. Civ. P. 72(a). Plaintiff addresses those two rulings separately in Part III under that standard, and requests that the Court apply Rule 72(a) — not Rule 72(b) — to them.

II. OBJECTIONS TO DISPOSITIVE RECOMMENDATIONS (DE NOVO REVIEW)

OBJECTION NO. 1 — The R&R Correctly Found an Unreasonable Seizure but Erred in Recommending Qualified Immunity Without the Benefit of Adversarial Briefing on Clearly Established Law

1. The R&R correctly finds that Plaintiff has stated a viable Fourth Amendment claim for the unreasonable seizure of his vehicle. R&R at 21. The Magistrate Judge held that the community-caretaking exception recognized in *South Dakota v. Opperman*, 428 U.S. 364 (1976), does not apply on this record because there is no evidence the vehicle was disabled, illegally parked, obstructing traffic, or unregistered, and because willing private custodians were present and available to take custody of the vehicle. *Id.* This finding — that a genuine constitutional violation occurred — is not before the Court on objection and should stand undisturbed.

2. The R&R nonetheless recommends qualified immunity for Defendants Doraty and Osteen on this claim, but does so solely on the ground that “Reardon fails to even address Doraty’s and Osteen’s assertion of qualified immunity as to the unreasonable seizure claim, much less point the court to case law suggesting that the right . . . was a clearly-established right at the time that Reardon’s vehicle was impounded.” R&R at 24. This is, by the Magistrate Judge’s own description, a forfeiture finding grounded in the state of the pro se pleadings below — not a considered ruling that no clearly established law existed. Plaintiff now respectfully briefs that question for the first time.

3. The clearly-established-law inquiry does not require a case with identical facts; it requires that the unlawfulness of the conduct be apparent in light of pre-existing law. *Hope v. Pelzer*, 536 U.S. 730, 739 (2002) (“officials can still be on notice that their conduct violates established law even in novel factual circumstances”). Towing a citizen’s own undamaged, legally driveable vehicle over his express objection — with willing custodians standing at the scene and none of the recognized caretaking justifications present, a fact the Magistrate Judge himself already found — is precisely the kind of “obvious” constitutional violation *Hope* addresses. Officers need not have a case squarely on point when the constitutional deficiency is clear from the general legal standards already established by *Opperman*, *Colorado v. Bertine*, 479 U.S. 367 (1987), and *Florida v. Wells*, 495 U.S. 1 (1990) — all of which limit impoundment and inventory-search authority to a genuine caretaking rationale applied under standardized criteria, not unfettered officer discretion. These cases predate the seizure at issue by decades and were clearly established law well before this incident.

4. Plaintiff acknowledges that the R&R cites *Degenhardt v. Bintliff*, 117 F.4th 747, 757 (5th Cir. 2024), for the proposition that officers in a materially similar impoundment scenario also received qualified immunity. Plaintiff does not ask this

Court to treat *Degenhardt* as supporting authority; rather, Plaintiff submits that *Degenhardt* does not resolve the distinct “obviousness” theory available under *Hope v. Pelzer*, which the R&R did not address, and that the two lines of authority should be considered together rather than *Degenhardt* being read to foreclose the *Hope* analysis entirely.

5. Because the qualified-immunity determination on this claim was reached without the benefit of adversarial briefing on the clearly-established-law question, Plaintiff respectfully requests that this Court either (a) decline to adopt the R&R's qualified-immunity recommendation on the unreasonable-seizure claim in light of the obviousness doctrine set out in *Hope v. Pelzer*, or (b) in the alternative, permit supplemental briefing limited to that narrow legal question before final ruling.

RELIEF REQUESTED: That the Court decline to adopt the recommendation granting qualified immunity to Defendants Doraty and Osteen on the unreasonable-seizure claim, or in the alternative, permit supplemental briefing on the clearly-established-law question before ruling.

OBJECTION NO. 2 — The First Amendment Retaliation Claim Should Be Dismissed Without Prejudice and With Leave to Amend

6. The R&R recommends dismissal of Plaintiff's First Amendment retaliation claim on the ground that Plaintiff failed to plead comparator evidence — facts showing that similarly situated individuals not engaged in protected activity (journalism/First Amendment auditing) would not have been subjected to the same stop, arrest, or impoundment for the same underlying conduct. R&R at 27–28.

7. This is a pleading-specificity deficiency, not a substantive merits defect, and pro se pleadings are entitled to liberal construction. Plaintiff can supply comparator-type

allegations on amendment, including publicly available arrest and booking data for comparable stops in Galveston and specific facts, alleged on information and belief where necessary, regarding disparate treatment of similarly situated drivers.

RELIEF REQUESTED: That the First Amendment retaliation claim be dismissed without prejudice, with leave to amend to plead comparator allegations.

OBJECTION NO. 3 — The Malicious Prosecution and Unlawful Search Claims Should Not Be Resolved on the Pleadings Without a *Franks* Hearing, and the Court's Own False-Statement Findings Should Be Preserved of Record

8. The R&R itself finds, on this record, that “the record shows that Osteen lied to Judge Tollison. That is disturbing.” R&R at 20. Separately, Defendants' own Reply brief concedes that Defendant Osteen “stated on camera he could not smell alcohol,” Dkt. 79 ¶ 14, directly contradicting the “moderate odor of alcohol” representation in the blood-warrant affidavit. Plaintiff respectfully requests that both of these findings be preserved of record notwithstanding dismissal of the underlying claims, given their independent relevance to the credibility of Defendant Osteen's sworn statements throughout this litigation.

9. As to the unlawful-search claim itself, the R&R concludes that even disregarding the disputed portions of Osteen's affidavit, independent facts — failure to maintain a single lane, watery eyes, and refusal of a field sobriety test — supported probable cause for the blood-draw warrant. R&R at 20–21. *Franks v. Delaware*, 438 U.S. 154 (1978), entitles a plaintiff who makes a substantial preliminary showing of deliberate or reckless falsity in a warrant affidavit to an evidentiary hearing testing the effect of the false statements on the totality of the probable-cause showing. Resolving that materiality question on the pleadings alone, without a hearing, does not permit Plaintiff to test whether the remaining, ostensibly independent facts were in fact relayed by

Osteen himself or corroborated by any other officer or witness.

10. Plaintiff respectfully requests a *Franks* hearing on this narrow materiality question, while acknowledging that the R&R's independent-probable-cause analysis is substantive and that this objection is offered principally to preserve the issue for the existing record and for any subsequent appeal.

RELIEF REQUESTED: That the Court preserve the findings described in Paragraph 8 of record, and that the Court order a *Franks* hearing on the materiality of Defendant Osteen's disputed statements before final resolution of the unlawful-search claim.

OBJECTION NO. 4 — The Excessive Force Claim Should Be Dismissed Without Prejudice and With Leave to Amend

11. The R&R recommends dismissal of the excessive force claim because Plaintiff did not specify the nature of his physical or psychological injury beyond conclusory labels. R&R at 26. Plaintiff has a documented, pre-existing shoulder injury that required three prior hospitalizations, and can plead with specificity how the forced restraint and blood draw aggravated that injury, together with specific psychological symptoms arising from the incident.

RELIEF REQUESTED: That the excessive force claim be dismissed without prejudice, with leave to amend to plead specific injury facts.

OBJECTION NO. 5 — The Claims Against Defendant Doraty Should Be Dismissed Without Prejudice and With Leave to Amend

12. The R&R dismisses the claims against Defendant Doraty because the current pleading describes his conduct only in conclusory terms — that he “participated in and supervised” the incident and “caused” the vehicle “to be towed” — without specific

factual detail distinguishing his individual conduct from that of the other officers present. R&R at 15–16. Plaintiff can supply specific factual detail regarding Defendant Doraty's individual conduct at the scene on amendment.

RELIEF REQUESTED: That the claims against Defendant Doraty be dismissed without prejudice, with leave to amend to plead his specific individual conduct.

OBJECTION NO. 6 — Reserved as to Defendant Busby's Personal-Jurisdiction Dismissal

13. The R&R's Rule 12(b)(2) analysis as to Defendant Busby relies on Busby's affidavit and a corroborating affidavit from Assistant District Attorney Steven Jubera establishing that Jubera, not Busby, personally transmitted the March 25, 2024 letter to Texas authorities. R&R at 10–12. Plaintiff does not presently identify additional, non-conclusory facts establishing other direct contacts by Defendant Busby with the State of Texas, and reserves this objection only in the event such facts are identified before final ruling.

III. OBJECTIONS TO NON-DISPOSITIVE ORDERS (CLEAR-ERROR REVIEW UNDER RULE 72(a))

OBJECTION NO. 7 — The Order Denying Plaintiff's Motion to Strike and for Sanctions (Dkt. 61)

14. The Magistrate Judge denied Plaintiff's motion to strike Defendant Busby's affidavit and for sanctions on the ground that the record shows Assistant District Attorney Jubera, not Busby, personally contacted Texas, such that Busby's affidavit was not literally false. R&R at 31–32. Plaintiff reserves this objection for further development only if facts contradicting that finding are identified.

OBJECTION NO. 8 — The Order Denying Plaintiff's Motion for Leave to File a Supplemental Complaint (Dkt. 85)

15. The Magistrate Judge denied leave to file a supplemental complaint concerning new claims against non-parties — the United States Marshals Service, unidentified Galveston officers, and Marty's City Auto — arising from the June 22, 2026 seizure of Plaintiff's second vehicle, on the ground that such claims belong in a separate action. R&R at 32. Plaintiff does not object to this ruling and confirms that claims arising from the June 22, 2026 incident will be filed as a new, separate action rather than renewed in this case.

IV. OBJECTION TO THE RECOMMENDED DENIAL OF PLAINTIFF'S MOTION FOR TEMPORARY RESTRAINING ORDER (DKT. 84)

OBJECTION NO. 9 — The TRO Denial Is Derivative of the Other Recommendations and Should Be Reconsidered if Objection No. 1 Is Sustained

16. The R&R recommends denial of Plaintiff's motion for a temporary restraining order solely because it recommends dismissal of all federal claims. R&R at 32–33. Because this recommendation is entirely dependent on the outcome of the underlying dismissal recommendations, Plaintiff respectfully requests that if this Court sustains Objection No. 1 above, the Court also reconsider the denial of the motion for a temporary restraining order on its own merits, rather than treating that denial as independently final.

V. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

(a) Decline to adopt the R&R's recommendation of qualified immunity on the unreasonable-seizure claim against Defendants Doraty and Osteen, or in the alternative, permit supplemental briefing on the clearly-established-law question;

- (b) Dismiss the First Amendment retaliation claim, the excessive force claim, and the claims against Defendant Doraty without prejudice and with leave to amend;
- (c) Preserve of record the findings described in Paragraph 8 above, and order a *Franks* hearing on the materiality of Defendant Osteen's disputed statements;
- (d) Otherwise adopt the R&R's recommendations as set forth herein, including the dismissal of Defendant Busby, the denial of the motion to strike and for sanctions, and the denial of the motion for leave to file a supplemental complaint; and
- (e) Reconsider the denial of Plaintiff's motion for a temporary restraining order (Dkt. 84) in the event Objection No. 1 is sustained, and grant such other and further relief as the Court deems just and proper.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on this ____ day of July, 2026, a true and correct copy of the foregoing was served upon all counsel of record via the Court's CM/ECF electronic filing system and/or by U.S. Mail, postage prepaid, as required by the Federal Rules of Civil Procedure and the Local Rules of the Southern District of Texas.

Matthew Oliver Reardon